

**CHAPTER iii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Clydebank Burgh. A.D. 1937.
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[9th December 1937.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Clydebank Burgh Order Confirmation Act 1937. Short title.

A.D. 1937.

SCHEDULE.

CLYDEBANK BURGH.

Provisional Order to extend the boundaries of the burgh of Clydebank to make provision with respect to the local government and health of the said burgh and for other purposes.

WHEREAS the burgh of Clydebank (hereinafter called "the burgh") in the county of Dunbarton is under the government for municipal purposes of the provost magistrates and councillors of the burgh of Clydebank (hereinafter called "the Town Council") :

And whereas the lands available for the erection of dwelling-houses within the existing burgh are limited and it is necessary to provide for the erection of houses on lands outwith the boundaries thereof for the accommodation of persons employed therein for the relief of overcrowding which prevails in the existing burgh and to meet the needs of an increased population and additional lands will be required for such purposes :

And whereas the area described in the First Schedule to this Order is situate in the county of Dunbarton and immediately adjoins the existing burgh :

And whereas it is expedient and would be for public and local advantage that the boundaries of the existing burgh should be extended and should include the said area as by this Order provided and that all franchises rights privileges and immunities of and pertaining to the existing burgh and the powers and jurisdictions of the Town Council and all other powers and jurisdictions applicable within the existing burgh should as by this Order provided be extended to and be applicable within the burgh as extended by this Order and to the inhabitants thereof :

And whereas it is expedient that subject to the provisions of this Order the said area should be separated and disjoined for the purposes of this Order from the

county of Dunbarton and that all matters of administration and management and all jurisdictions powers functions and authorities within the said area should devolve upon and be vested in the Town Council : A.D. 1937.
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And whereas it is expedient that the said area should be added to one of the existing wards of the burgh as in this Order provided :

And whereas it is expedient that the compulsory limits of water supply of the Clydebank and District Water Trustees should be extended and that the Clydebank and District Water Orders 1906 to 1934 should be amended as hereinafter in this Order provided :

And whereas it is expedient that further provision should be made with reference to cleansing and sanitary matters and the local government and health of the burgh :

And whereas it is expedient that the Town Council should be authorised to borrow money for the purposes in this Order mentioned :

And whereas it is expedient that the further provisions contained in this Order should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows :—

PART I.

PRELIMINARY.

1.—(1) This Order may be cited as the Clydebank Short title.
Burgh Order 1937.

(2) This Order and the Clydebank and District Water Orders 1906 to 1934 may be cited together as the Clydebank and District Water Orders 1906 to 1937.

2. This Order except where otherwise expressly provided shall commence and have effect on and from the date of the passing of the Act confirming this Commence-
ment of
Order.

A.D. 1937. Order which date is in this Order referred to as
"the commencement of this Order."

PART I.

—cont.

Order
divided
into Parts.

3. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Extension of boundaries.

Part III.—Public health sanitary cleansing &c.

Part IV.—Miscellaneous.

Interpreta-
tion.

4. In this Order (unless there be something in the subject or context inconsistent with or repugnant to such construction) the several words and expressions to which meanings are assigned by any public or local Act of Parliament or Order applicable within the burgh shall subject to the provisions of this Order have the same respective meanings And in this Order unless the context otherwise requires the following expressions shall have the meanings assigned to them in this section (that is to say) :—

"Existing burgh" means the burgh of Clydebank within the limits and boundaries existing immediately previous to the sixteenth day of May one thousand nine hundred and thirty-eight;

"Burgh" means the existing burgh as extended by this Order;

"Added area" means the portion of the county by this Order incorporated with the existing burgh and described in the First Schedule to this Order and shown on the map to be deposited as hereinafter provided;

"Ward" or "wards" means ward or wards of the burgh;

"Town Council" means the provost magistrates and councillors of the existing burgh or of the burgh as the case may be;

"Magistrates" means the magistrates of the existing burgh or of the burgh as the case may be;

"Town clerk" means the town clerk of the existing burgh or of the burgh as the case may be;

"County" means the county of Dunbarton;

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“County council” means the county council of the county; A.D. 1937.

“District council” means the district council of the New Kilpatrick District of the county;

PART I.
—cont.

“Town Councils Acts” means the Town Councils (Scotland) Acts 1900 to 1923 and any Acts amending or extending the same;

“Back court” means any recess yard area or enclosed space behind and contiguous or adjacent to any building and used in common by the tenants of separate parts of such building;

“Daily penalty” means a penalty for every day on which any offence is continued after conviction therefor;

“Sheriff” means the sheriff of Stirling Dumbarton and Clackmannan and includes his substitutes.

PART II.

EXTENSION OF BOUNDARIES.

5. This Part of this Order shall except as hereinafter provided come into operation on and from the sixteenth day of May one thousand nine hundred and thirty-eight.

Commence-
ment of
Part II of
Order.

6. The municipal and police boundaries of the existing burgh shall be and are hereby extended to and shall include and comprehend in addition to the area embraced in the existing burgh the added area as described in the First Schedule to this Order and the burgh shall be comprised within the boundaries set forth and described in the Second Schedule to this Order :

Extension of
boundaries.

Provided that the rules prescribed by the Representation of the People Acts shall be observed and receive effect with reference to the description of boundaries contained in the said Second Schedule.

7. A map of the burgh of which eleven copies have been signed by Matthew George Fisher counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1936 shall within one month after the commencement of this Order be deposited

Map of
burgh.

A.D. 1937.

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PART II.
—cont.

as follows (that is to say) one copy with the town clerk one copy with the sheriff clerk of the county at his office in Dumbarton one copy in the office of the Clerk of the Parliaments House of Lords one copy in the Committee and Private Bill Office of the House of Commons one copy at the Scottish Office Whitehall one copy with the Registrar-General of Births Deaths and Marriages in Scotland one copy with the Minister of Agriculture and Fisheries one copy with the Commissioners of Inland Revenue one copy with the Commissioners of Customs and Excise one copy with the Minister of Transport and one copy with the Board of Trade.

If there be any discrepancy between the said map and the description in the Second Schedule to this Order the said map shall be deemed to be correct and shall prevail.

Order not
to affect
election of
members to
serve in
Parliament.

8. Nothing in this Order contained shall interfere with the election of members to serve in Parliament for the county and the county shall for parliamentary purposes remain in all respects as if the Act confirming this Order had not been passed.

Added area
disjoined
from
county.

9. The added area shall be and the same is hereby for the purposes of this Order disjoined from the county.

Abolition of
special
districts.

10.—(1) The special water drainage scavenging and lighting districts so far as situated within the added area shall be and are hereby abolished and to that extent all resolutions of the county council and all orders and decrees of the sheriff or of any other authority constituting or relating to the said special districts shall be of no force or effect so far as extending to or affecting any part of the burgh and the county council shall be relieved by the Town Council from all obligations in respect of the said special districts so far as the same are situated within the added area.

(2) The Town Council shall not in respect of such special districts be under any obligations nor except by agreement with the local authority of such districts exercise any powers in such districts so far as they are beyond the burgh.

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11.—(1) The added area shall be added to the First Ward of the existing burgh and shall form part of the First Ward of the burgh.

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PART II.
—cont.

(2) Nothing in this section shall affect the application to the burgh of the provisions of the Local Government (Scotland) Act 1929 with regard to the alteration of the number of magistrates and councillors in burghs and to the number of councillors in each ward and to the division or re-division into wards.

Added area
added to
existing
ward.
19 & 20
Geo. 5. c. 25.

12. The provisions of the Town Councils Acts regarding the election of town councillors in burghs divided into wards or districts so far as the same apply to the existing burgh shall subject to the provisions of this Order apply to the five wards and to the elections therein and to the election qualification continuance in office declinatures resignations and retirements of councillors and to supplying vacancies in the council by death disability resignations or other causes or otherwise.

Application
of Acts as to
municipal
elections.

13. For the purpose of the Acts in force for the time being relating to the registration of local government voters and the election of town councillors for the respective wards in the burgh the added area shall notwithstanding anything in this Order contained be deemed to be and to have always been a part of the burgh and to have been included in the ward specified in the section of this Order of which the marginal note is " Added area added to existing ward " for the making up of the register of voters.

Register of
voters.

14. The Town Council shall in all respects stand in relation to the administration of the affairs and property of the burgh and of property under the care and management of the Town Council in the same position in which the Town Council of the existing burgh stood previous to the commencement of this Part of this Order and the Town Council shall have the same rights and powers of administration of the property and affairs of the burgh and of making all usual and necessary appointments as lawfully belonged to and were exerciseable or exercised by the Town Council of the existing burgh in regard thereto anything in the set usage or customs of the existing burgh to the contrary notwithstanding.

Town
Council to
administer
affairs of
burgh.

A.D. 1937.

PART II.

—cont.

Power of
Town
Council and
magistrates
extended to
burgh.

15. The Town Council and magistrates shall have possess and may exercise over the burgh and the inhabitants thereof all the jurisdictions powers rights and authorities which they respectively possessed and exercised over the existing burgh and the inhabitants thereof whether at common law or by statute or otherwise including all powers of imposing levying and recovering rates and assessments dues and charges and all rights and privileges and immunities and obligations enjoyed and possessed by or incumbent on the inhabitants of the existing burgh shall subject to the provisions of this Order extend and apply to the inhabitants of the burgh.

Powers of
other juris-
dictions to
cease.

16. Subject to the provisions of this Order all jurisdictions rights powers and duties which previous to the commencement of this Part of this Order were exercised or exerciseable by the county council or any local or licensing or other authority within the added area or any part thereof under any public general or local or private Act of Parliament or Order shall cease and determine.

Property of
existing
burgh
vested in
Town
Council.

17. Subject to the provisions of this Order all property belonging to the Town Council at the commencement of this Part of this Order or to which the Town Council is entitled or which is held or administered by any person for or on behalf of the community of the existing burgh or for the public ends and purposes thereof shall be vested in and be held by the Town Council for the behoof and benefit of the burgh or as the case may be administered by such person for or on behalf of the community of the burgh or for the public ends and purposes thereof and all debts and obligations due by or exigible from the Town Council at the commencement of this Part of this Order shall be due by and exigible from the Town Council and all debts due to the Town Council by any person prior to the commencement of this Part of this Order may be demanded and recovered from such person and received and applied by the Town Council for the behoof of the burgh.

Property
and liabili-
ties in added
area vested
in Town
Council.

18.—(1) Subject to the provisions of this Order all property vested in held by or due or belonging to the county council in the added area shall by virtue of this Order be transferred to vested in held by and be due and

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belong to the Town Council and shall form part of the property and assets of the Town Council for all the estate and interests therein of the county council and shall be received held and enjoyed by the Town Council accordingly.

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PART II.
—cont.

(2) Subject to the provisions of this Order all the powers duties liabilities debts obligations contracts and agreements of the county council in relation to the added area shall by virtue of this Order be transferred and attached to the Town Council and shall form part of the powers duties liabilities debts obligations contracts and agreements of the Town Council and be enjoyed performed paid and discharged by them.

19. Subject to the provisions of this Order every rate charge or assessment authorised to be requisitioned for levied and collected by the county council over the added area or any part or parts thereof which has not been actually imposed previous to the commencement of this Part of this Order shall thereupon cease and determine within the added area and thereafter all assessments and rates leviable within the existing burgh by the Town Council shall be leviable on and within the burgh in the same way and manner as the same were leviable on and within the existing burgh.

Assessment
of burgh.

20. Every rate charge or assessment which has been actually imposed by the county council within the added area or any part thereof before the commencement of this Part of this Order together with all arrears thereof shall continue to be due and payable to and may be collected and levied by the county council and by the same ways and means and under the same restrictions and regulations as if the Act confirming this Order had not been passed and shall be received and applied by the county council to and for the purposes for which the same were authorised to be levied.

Recovery
of assess-
ments
within
added area.

21. Subject to the provisions of this Order the roads streets highways lanes bridges foot-pavements and footpaths and the sewers and drains in the added area so far as the same were vested in and managed maintained and repaired by the county council shall by virtue of this Order be transferred to and vested in and managed maintained and repaired by the Town Council

Roads &c.
in added
area.

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PART II.
—cont.

along with and in the same way and manner and to the same extent as the roads streets highways lanes bridges foot-pavements and footpaths and the sewers and drains within the existing burgh and the county council shall be freed and relieved of the repair and maintenance of all such roads streets highways lanes bridges foot-pavements and footpaths and sewers and drains so far as within the added area in all time coming.

Saving
rights in
roads &c.

22. Nothing in this Order contained with respect to the vesting in the Town Council of roads streets highways lanes bridges foot-pavements footpaths sewers or drains within the added area shall prevent any superiors owners or other persons by whom or by whose predecessors the same shall have been formed from recovering the cost or any proportion of the cost of forming the same from feuars or other persons under any agreements made between such persons respectively.

Books to be
evidence.

23.—(1) All books documents maps and plans directed or authorised to be kept by the county council in the added area by any Act or otherwise shall so far as they relate solely to the added area belong and be transferred to the Town Council and in so far as they would at the commencement of this Part of this Order be receivable in evidence shall be admitted as evidence in all courts and proceedings notwithstanding the cesser of the powers of the county council.

(2) The foregoing provision shall not apply to the books documents maps and plans kept by the county council which relate to parts of the county other than the added area but the Town Council and their officers shall be entitled to access to such books documents maps and plans in so far as may be necessary in relation to matters affecting the added area and the respective clerks or other officers of the county council shall afford all reasonable facilities for that purpose.

Application
of general
and local
Acts and
byelaws.

24.—(1) Except so far as inconsistent with or varied by this Order the provisions of all public and general and local and private Acts and Orders which applied to the existing burgh and all byelaws rules regulations and orders made thereunder shall extend and apply to the burgh in the same way and to the like extent as they applied to and had effect within the existing burgh :

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Provided that nothing in this Order shall extend the area of supply defined by the Clydebank Electric Lighting Orders 1901 and 1908.

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PART II.

—cont.

(2) Subject to the provisions of this Order all byelaws rules regulations and orders made under the provisions of any Acts or Orders relative to and in force in the added area or any part thereof shall cease to have effect except in so far as the same may have been acted upon.

25.—(1) The Secretary of State may in order to meet the circumstances arising from the extension of the existing burgh under this Order by order vary the procedure prescribed by or in pursuance of the Temperance (Scotland) Act 1913 in connection with the taking of polls under the last-mentioned Act or otherwise including any dates fixed in connection with such procedure.

Variation of
procedure
under Tem-
perance
(Scotland)
Act 1913.

3 & 4 Geo. 5.
c. 33.

(2) This section shall come into operation on the date of the passing of the Act confirming this Order.

26.—(1) The powers of the Department of Health for Scotland (hereinafter in this section referred to as "the department") shall operate for the purpose of reconstituting by order made by the department the insurance committees for the county and for the burgh as from the commencement of this Part of this Order or such subsequent date as shall be determined by the department and that in such manner and to such extent if any as the department may deem necessary in consequence of the provisions of this Order and for the adjustment consequent on the said provisions of the boundaries of the areas and the financial rights and obligations of the said committees and any such order made by the department may contain such incidental supplemental and consequential provisions as may appear to the department necessary or expedient for carrying the order made by them into effect and for adapting thereto the provisions of the National Health Insurance Acts 1936 and 1937 Provided that any order so made shall be laid before both Houses of Parliament as soon as may be after it is made.

Insurance
committees.

26 Geo. 5. &
1 Edw. 8.
c. 32.
1 Edw. 8. &
1 Geo. 6.
c. 24.

(2) This section shall come into operation on the date of the passing of the Act confirming this Order.

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PART II.
—cont.
Poor law
settlement.

27.—(1) Every person whose settlement is derived from birth or residence for the statutory period of three years in the added area shall be deemed to have a settlement within the burgh.

(2) Every person who at the commencement of this Part of this Order is resident in the added area and is in course of acquiring a settlement in the county by reason of such residence shall for the purposes of his settlement be deemed to have resided within the burgh during the period during which he has prior to the commencement of this Part of this Order resided within the added area.

(3) Where at the commencement of this Part of this Order a person has a settlement within the county by reason of residence partly in the added area and partly in another part of the county the burgh or the county as the case may be shall be deemed to be the area of settlement of that person according as the place of his residence at the time of his acquiring a settlement was within the added area or within another part of the county.

61 & 62 Vict.
c. 21.
24 & 25
Geo. 5.
c. 52.

(4) For the purposes of section 4 of the Poor Law (Scotland) Act 1898 and subsection (3) of section 3 of the Poor Law (Scotland) Act 1934 every person who at the commencement of this Part of this Order is resident in the added area shall be deemed to have resided within the burgh during the period during which he has prior to the commencement of this Part of this Order resided within the added area or within another part of the county.

Power to
Town
Council and
county
council to
enter into
agreements.

28.—(1) Subject and without prejudice to any of the provisions of this Order the Town Council and the county council may before or after the commencement of this Part of this Order make and carry into effect agreements with respect to the transfer of property from the county council to the Town Council and for settling and adjusting any claims or any doubt or difference arising in relation thereto.

(2) The provisions of any such agreement shall be deemed to be within the powers of the Town Council and the county council and if and when made shall have and be carried into effect accordingly.

(3) Any difference or dispute arising as to any such agreement or as to any other matter or thing in relation

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to the transference under this Order of the property of the county council shall be determined by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary of State on the application of any of the parties concerned.

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PART II.
—cont.

29. The financial adjustments between the Town Council and the county council or the district council consequent upon the inclusion within the boundaries of the burgh of the added area shall be made upon the basis of the provisions of the Local Government (Adjustments) (Scotland) Act 1914 and in accordance with the rules contained in the schedule to that Act and section 50 of the Local Government (Scotland) Act 1889 shall apply and have effect on the extension of the boundaries of the existing burgh by this Part of this Order and any dispute or difference arising in connection with such adjustments shall be settled by arbitration by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary of State on the application of the Town Council or the county council or the district council as the case may be.

Financial
adjust-
ments.

4 & 5 Geo. 5.
c. 74.

52 & 53 Vict.
c. 50.

30. No action arbitration prosecution or proceeding commenced pending or existing by or against the county council or the district council as the case may be in relation to any powers liabilities or property by this Order transferred to the Town Council shall in anywise abate or be discontinued or prejudicially affected by reason of the passing of the Act confirming this Order but may be continued prosecuted and enforced by or in favour of or against the Town Council as successors of the county council or the district council as the case may be as fully and effectually as they could have been continued prosecuted and enforced by or in favour of or against the county council or the district council as the case may be if the Act confirming this Order had not been passed.

Actions &c.
not to
abate.

31.—(1) As on and from the commencement of this Part of this Order the limits of compulsory supply of the Clydebank and District Water Trustees under the Clydebank and District Water Orders 1906 to 1934 are hereby extended so as to include therein the added area and section 40 (Limits of compulsory supply) of the Clydebank and District Water and Burgh Extension

Extension of
compulsory
limits of
supply of
Clydebank
and District
Water
Trustees.

A.D. 1937. Order 1906 and the First Schedule to the said Order are hereby amended accordingly.

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PART II.
—cont.

(2) The corporation of the city of Glasgow shall not supply water or levy water rates assessments dues or charges for any period subsequent to the commencement of this Part of this Order within any part of the added area and the provisions of any Act or Order so far as the same authorises the supply of water or the levying of water rates assessments dues or charges by the said corporation for any period subsequent to the commencement of this Part of this Order within the added area shall cease and determine.

Saving of
existing
jurisdic-
tions &c.

32. Nothing in this Part of this Order contained shall transfer or be deemed or construed to transfer to the Town Council—

(1) Any main sewer in the added area used for the purposes of areas other than or in addition to the added area :

(2) Any property in the added area belonging to the electricity authorised undertakers in the said area or any powers exercised or exerciseable in the added area by such authorised undertakers :

(3) (a) Any jurisdiction power or right hitherto exercised or exerciseable by the county council within the added area which was also exercised or exerciseable within the existing burgh by the county council previous to the commencement of this Part of this Order ;

(b) Any liability debt duty or obligation incurred by or incumbent on the county council in connection with the exercise of any such jurisdiction power or right ; or

(c) Any property (including books documents maps and plans) officer or servant held or employed for the future exercise of any such jurisdiction power or right or for the discharge of any such liability debt duty or obligation.

Saving for
county
councillors
&c.

33. Notwithstanding anything contained in the Local Government (Scotland) Act 1889 or this Order any member of the county council or of the district council who at the commencement of this Part of this Order represents any electoral division situated partly

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within and partly without the added area shall continue to be a member of the county council or of the district council as the case may be (unless he resigns) until the next election of county councillors or of district councillors as the case may be after the commencement of this Part of this Order.

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PART II.
—cont.

PART III.

PUBLIC HEALTH SANITARY CLEANSING &C.

34.—(1) Every occupier of any shop or other premises used for the sale preparation or storage of butcher meat poultry game fish butter meal bread or any other article of food which by its nature will be liable to contamination by contact with unclean conditions who does not keep such shop or other premises clean and in good condition shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

Penalty for
want of
cleanliness
in meat and
provision
shops &c.

(2) Every person who uses any cart basket or other article or thing for the disposal or sale of any article of food which by its nature will be liable to contamination by contact with unclean conditions who does not keep the same clean and in good condition shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

35.—(1) A noise nuisance shall be liable to be dealt with summarily in the manner provided in Part II of the Public Health (Scotland) Act 1897 in the same way and to the same effect as in cases under subsection (6) of section 16 of that Act and the Town Council shall have all the powers and duties with reference to a noise nuisance which a local authority has with reference to a nuisance under the said Act.

Noise
nuisance.
60 & 61 Vict.
c. 38.

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case :

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good

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PART III.

—cont.

defence that the best practical means of preventing or mitigating it having regard to the cost have been adopted.

(3) Nothing contained in this section shall apply to a railway company or their servants exercising statutory powers.

Collection
and disposal
of refuse.

36.—(1) Subject to the provisions of this section the Town Council shall make or cause to be made provision for the effectual scavenging of the burgh in a suitable manner for keeping the streets clean and for the collection disposal or treatment of domestic refuse but the Town Council shall not be bound to collect and remove manure soot or trade refuse otherwise than as provided in this section.

(2) The Town Council may make arrangements with shopkeepers occupiers of factories or business premises or others for the collection removal and disposal of trade refuse manure or soot at such times and on such terms as the Town Council may determine.

(3) For the purposes of this section—

“Domestic refuse” means any dust ashes and other refuse arising from or incidental to the normal occupation of any dwelling-house shop office warehouse cinematograph theatre or other similar premises but does not include manure or trade refuse;

“Trade refuse” means (1) the refuse arising out of or incidental to the carrying on of any trade business or manufacture including (a) ashes clinker and flue dust from any kiln engine furnace oven or stove used in connection with any industrial or commercial purpose or process (b) packing material and similar refuse from shops warehouses and workshops (c) fruit and vegetable rubbish (d) meat and fish offal and (e) garage debris and (2) garden rubbish.

Loading or
unloading
of goods on
street.

37. Any person who in connection with the loading or unloading of goods or articles of any description causes or permits straw paper packing material or debris from any crate or package to be thrown or laid on any street and does not immediately remove the same or in any way litters any street shall be liable to a penalty not exceeding forty shillings.

38.—(1) If any watercourse or ditch situate upon any land in the burgh laid out for building or on which any such land abuts requires to be wholly or partially filled up or covered over the Town Council may by notice in writing require the owner or owners of such land to substitute for such watercourse or ditch a pipe drain or culvert. Provided that nothing in this section shall authorise the Town Council to require the filling up or covering over of any watercourse or ditch wholly or partly belonging to any person other than the owner of the land so laid out for building. Any person failing to comply with such notice shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

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PART III.

—cont.

Power to
require
culverting
of water-
course or
ditch on
building
land.

(2) Any person aggrieved by any requirement of the Town Council under the provisions of this section may appeal therefrom and section 339 of the Burgh Police (Scotland) Act 1892 shall apply in respect of any such appeal.

55 & 56 Vict.
c. 55.

39. The owners or occupiers of any lands abutting upon any public street (other than lands occupied for agricultural purposes) shall so fence off channel or embank the said lands as to prevent the soil sand or other debris of such lands from falling upon or being washed or carried into any public street or into any sewer or gully in such quantities as may obstruct the street or choke up such sewer or gully and if any person shall after one month's notice in writing from the Town Council fail in any respect to comply with the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

For preven-
ting soil
and sand
from being
washed into
streets.

40.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building in the burgh shall where practicable and if required by the Town Council provide to the reasonable satisfaction of the Town Council and until the completion of any such work or operation such water or other closets and urinals in or in connection with such building as may be sufficient for the accommodation of the workmen employed.

Sanitary
conveni-
ences for
workmen
engaged on
buildings.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

A.D. 1937.

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PART III.
—cont.

(3) Any person aggrieved by any requirement of the Town Council under the provisions of this section may appeal therefrom and section 339 of the Burgh Police (Scotland) Act 1892 shall apply in respect of any such appeal.

Control of
vacant
building
areas and
derelict
buildings.

41.—(1) For the protection of the amenity of the burgh and for preventing the disfigurement of the streets by the unsightly condition of adjacent lands and buildings the Town Council may make byelaws for regulating the manner in which vacant building sites fronting or abutting on streets and unoccupied or ruinous buildings in streets shall be kept :

Provided that no byelaws made under the authority of this section shall prevent or interfere with the erection of hoardings for advertisements on any vacant building site or building or the exhibition on such site or building of any advertisement as defined by the Advertisements Regulation Acts 1907 and 1925.

7 Edw. 7.
c. 27.

15 & 16

Geo. 5. c. 52.

(2) Byelaws made under the authority of this section shall not apply to any such site or to any building in a street unless at least one-half of the frontage of one side of the street is built upon.

(3) Byelaws made under the powers of this section shall not take effect unless and until they have been confirmed by the Department of Health for Scotland who may allow modify or disallow the same as they may think fit.

(4) The owner or the occupier of a building site or building who fails to comply with the byelaws made under the authority of this section shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds for each site or building in respect of which he fails to comply and to a daily penalty not exceeding forty shillings.

(5) Not less than one month before application is made by the Town Council to the said department for confirmation of a byelaw under this section notice of the intended application shall be published in one or more newspapers circulating in the burgh and for a period of not less than one month before making such application a copy of the proposed byelaws shall be kept at the office of the town clerk and shall be available for

[1 GEO. 6.]

Clydebank Burgh
Order Confirmation Act, 1937.

[Ch. iii.]

inspection during office hours without charge and the town clerk shall furnish a copy of the proposed byelaws to any ratepayer on application.

A.D. 1937.

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PART III.

—cont.

(6) Any person who objects to any proposed byelaw or any proposed alteration of a byelaw may during the last-mentioned period of one month send notice in writing of his objection to the said department and a copy of such objection shall at the same time be sent to the town clerk and the said department shall consider the objection and any answers by the Town Council thereto before confirming the byelaw.

42.—(1) No person shall erect or cause to be erected any fence railing or wall in or between back courts of which any spike or similar projection shall form a part.

Railings in
back courts.

(2) After the expiry of four years from the commencement of this Order no person shall allow any spike or similar projection to form a part of any fence railing or wall belonging to him in or between back courts.

(3) Any person who acts in contravention of subsections (1) or (2) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

43. Every person who wilfully turns or permits to enter into any sewer of the Town Council or any drain communicating therewith any petrol oil or other like deleterious substances from any workshop motor garage or other like premises shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

Prohibition
of entry of
petrol &c.
into sewers.

PART IV.

MISCELLANEOUS.

44. The Town Council may from time to time borrow at interest for the purposes of—

Borrowing
powers.

(a) the payment of any capital sum which may be paid under the provisions of the section of this Order of which the marginal note is “Financial adjustments”;

A.D. 1937.

PART IV.
—cont.

(b) the payment of any capital sum in respect of any land buildings drainage works or other property taken over by the Town Council; and

(c) the payment of the costs charges and expenses of this Order;

such sums of money as may be necessary Provided that money so borrowed for purposes (a) and (b) shall be repaid within twenty-five years from the date or dates of borrowing and that money so borrowed for purpose (c) shall be repaid within five years from the commencement of this Order.

Vesting of
property
transferred
to Town
Council &c.

45. All property transferred to or vested in the Town Council by virtue of this Order shall vest in them without the necessity of recording in the register of sasines any conveyance notarial instrument notice of title or other deed or writing but for the purpose of enabling the Town Council to complete a title if thought fit to any property transferred to and vested in them by virtue of this Order by expeding a notarial instrument notice of title or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such property in favour of the Town Council.

Recovery of
penalties.

46. Any penalty under this Order or under any byelaws or regulations made under this Order unless otherwise specially provided for may be recovered in manner provided by the Summary Jurisdiction (Scotland) Acts.

For pro-
tection of
Corporation
of Glasgow.
15 & 16
Geo. 5.
c. cxiv.

47. Section 20 (For protection of corporation of Glasgow) of the Clydebank Burgh Extension Act 1925 shall apply and have effect as if the same had with the necessary modifications been re-enacted in this Order.

For pro-
tection of
County
Council.

48. Section 21 (For protection of Dunbartonshire county authorities) of the Clydebank Burgh Extension Act 1925 shall apply and have effect as if the same had with the necessary modifications been re-enacted in this Order.

[1 GEO. 6.]

Clydebank Burgh
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[Ch. iii.]

49. The following provisions for the protection of the Clyde Valley Electrical Power Company (hereinafter in this section called "the company") shall apply and have effect (that is to say) :—

A.D. 1937.

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PART IV.
—cont.

For pro-
tection of
Clyde Valley
Electrical
Power
Company.

Notwithstanding anything in this Order contained the Company shall subject to the provisions of the Clyde Valley Electrical Power Acts 1901 to 1937 be entitled to exercise all the powers of their said Acts in their area of supply in the same way as if this Order had not been confirmed notwithstanding that the said area or some part thereof is comprised within the burgh.

50. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any lands buildings or works vested in or occupied by the Crown or any department of His Majesty's Government except to such extent as His Majesty or such department may voluntarily agree.

Crown
rights.

51. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Town Council out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of moneys to be borrowed by them under this Order for that purpose.

Costs of
Order.

A.D. 1937. The SCHEDULES referred to in the foregoing Order.

FIRST SCHEDULE.

(Referred to in the section of this Order of which the marginal note is " Interpretation.")

BOUNDARIES OF THE ADDED AREA.

Commencing at a point on the eastern boundary of the existing burgh of Clydebank 31 yards or thereby north of the north side of Mill Road thence following the said boundary of the existing burgh to the point where it meets the centre line of the Anniesland Duntocher-Bowling road thence in a south-easterly direction along the centre line of the said road for a distance of 537 yards or thereby to a point 430 feet or thereby in a north-westerly direction along the centre line of the said road from the eastern boundary of field numbered 1193 on the 25-inch Ordnance survey sheet N.XXIII.15 Dumbartonshire 1918 edition thence in a south-south-westerly direction in a straight line to the point of commencement.

SECOND SCHEDULE.

(Referred to in the section of this Order of which the marginal note is " Extension of boundaries.")

BOUNDARIES OF THE BURGH.

Commencing at a point in the centre of the river Clyde at the junction of the said river and the centre line of Yoker Burn and continuing along the centre line of the said river in a north-westerly direction for a distance of 5052 yards or thereby to a point 986 yards or thereby south-east of Erskine Ferry thence continuing in a straight line in a north-easterly direction along the south-east boundary fence of the Clyde oil fuel depot to the south bank of the London Midland and Scottish Railway thence following the said bank of the said railway in a north-westerly direction for a distance of 132 yards or thereby thence in a north-easterly direction crossing the said railway and continuing

[1 GEO. 6.]

Clydebank Burgh
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[Ch. iii.]

along the line of the fence between the fields numbered 896 and 967 on the 25-inch Ordnance survey sheet N.XXIII.10 Dumbartonshire 1918 edition to the southern bank of the Forth and Clyde canal thence along the said bank in a south-easterly direction for a distance of 140 yards or thereby thence crossing the said canal to the north bank to a point where the fence between the fields numbered 899 and 966 on the said Ordnance survey sheet meets the said north bank of the canal thence continuing along the said fence in a north-easterly direction to the north side of the road from Clydebank by Old Kilpatrick to Dumbarton thence south-eastwards along the north side of the said road for a distance of 107 yards or thereby to the line of the fence between the fields numbered 900 and 902 on the said Ordnance survey sheet thence in a straight line in a northerly direction to a point on the north side of the Anniesland Duntocher-Bowling road 240 yards or thereby west of the junction of the said road with Mountblow Road thence following the north side of the said road in an easterly and south-easterly direction to a point where the continuation of the line of the north fence of the road of access to Braidfield Farm meets the said road thence in a straight line in an easterly direction to a point on the boundary of the parishes of Old Kilpatrick and New Kilpatrick where the fence between the fields numbered 741 and 740 on the 25-inch Ordnance survey sheet N.XXIII.11 Dumbartonshire 1918 edition meets the said boundary thence continuing south-westerly and southerly along the boundary of the parish of Old Kilpatrick to a point where the said boundary meets the centre line of the Anniesland Duntocher-Bowling road thence in a south-easterly direction along the centre line of the said road to a point 430 feet or thereby in a north-westerly direction along the centre line of the said road from the eastern boundary of field numbered 1193 on the Ordnance survey sheet N.XXIII.15 Dumbartonshire 1918 edition thence in a south-south-westerly direction in a straight line to a point on the boundary of the parishes of Old Kilpatrick and New Kilpatrick 31 yards or thereby north of the north side of Mill Road thence continuing southerly south-westerly south-easterly westerly and south-westerly along the boundary of the parish of Old Kilpatrick to the point of commencement.

A.D. 1937.

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2ND SCH.
—cont.

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